

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 ENGROSSED SENATE
5 BILL NO. 2026

By: Hines of the Senate

and

Miller of the House

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9 An Act relating to counties; amending 19 O.S. 2021,
10 Section 270, which relates to confidentiality of
11 Department of Defense Form 214; authorizing
12 grandchildren of veterans to view certain military
13 discharge papers; updating statutory reference; and
14 providing an effective date.

15 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

16 SECTION 1. AMENDATORY 19 O.S. 2021, Section 270, is
17 amended to read as follows:

18 Section 270. A. The county clerk shall keep any ~~Department of~~
19 ~~Defense Form 214 (DD Form 214)~~ military discharge papers filed with
20 the clerk, including any ~~DD Form 214~~ military discharge papers that
21 ~~was~~ were filed before ~~the effective date of this act~~ July 1, 2002,
22 separate from records available for public inspection and shall not
23 make ~~the DD Form 214~~ military discharge papers available to any
24 person except as provided in this section. A record of the names of

1 veterans who have filed ~~DD Forms 214~~ military discharge papers with
2 the clerk shall be made available for public inspection.

3 B. The county clerk may authorize the viewing or copying of a
4 veteran's ~~DD Form 214~~ military discharge papers only by the veteran,
5 the veteran's spouse ~~or~~, child, or grandchild, a guardian for or a
6 person having power of attorney for the veteran, spouse, ~~or~~ child,
7 or grandchild upon presentation of a court order showing the
8 appointment, the executor or administrator of the estate of the
9 veteran or spouse upon presentation of a court order showing the
10 appointment, a representative of the United States Department of
11 Veterans Affairs, a funeral director upon presentation of a contract
12 signed by the person responsible for the funeral costs for the
13 veteran, or a person authorized by the court to view or copy ~~the DD~~
14 ~~Form 214~~ military discharge papers upon presentation of the court
15 order. The clerk shall record the names and addresses of all
16 persons viewing or copying ~~a DD Form 214~~ military discharge papers.

17 C. A county clerk shall not be liable or responsible for any
18 harm or damages that may occur as a result of any person obtaining,
19 copying or viewing ~~a DD Form 214~~ military discharge papers.

20 SECTION 2. This act shall become effective November 1, 2026.

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22 COMMITTEE REPORT BY: COMMITTEE ON HEALTH AND HUMAN SERVICES
23 OVERSIGHT, dated 04/16/2026 - DO PASS.
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